

## CHAPTER 16.

An Act to consolidate the provisions of the Coinage Offences Acts, 1861 and 1935, and of the Counterfeit Medal Act, 1883.

[21st May 1936.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Every person who falsely makes or counter-Counter-  
feits any coin resembling any current coin shall be feiting.  
guilty of felony and on conviction thereof liable—

- (a) in a case where the coin resembles a current gold or silver coin, to penal servitude for life or for any term not less than three years; and
- (b) in a case where the coin resembles a current copper coin, to penal servitude for a term not exceeding seven years or less than three years.

(2) The offence of falsely making or counterfeiting a coin shall be deemed to be complete although the coin made or counterfeited is not in a fit state to be uttered or the making or counterfeiting thereof has not been finished or perfected.

2. Every person who—

- (a) gilds or silvers, or, with any wash or materials capable of producing the colour or appearance of gold or silver or by any means whatsoever, washes, cases over or colours—

Gilding,  
silvering,  
filing and  
altering.

- (i) any coin whatsoever resembling any current gold or silver coin; or

- (ii) any current copper coin, with intent to make it resemble or pass for any current gold or silver coin; or

- (iii) any piece of silver or copper or of coarse gold or coarse silver or of any metal or mixture of metals, being of a fit size and figure to be coined, with intent that it shall

be coined into false and counterfeit coin resembling any current gold or silver coin; or

(b) gilds, or, with any wash or materials capable of producing the colour or appearance of gold or by any means whatsoever, washes, cases over or colours, any current silver coin with intent to make it resemble or pass for any current gold coin; or

(c) files or in any manner alters—

(i) any current silver coin with intent to make it resemble or pass for any current gold coin; or

(ii) any current copper coin with intent to make it resemble or pass for any current gold or silver coin;

shall be guilty of felony and on conviction thereof liable to penal servitude for life or for any term not less than three years.

Impairing  
gold or  
silver coin  
and unlaw-  
ful posses-  
sion of  
filings, &c.

3.—(1) Every person who impairs, diminishes or lightens any current gold or silver coin with intent that the coin so impaired, diminished or lightened may pass for a current gold or silver coin shall be guilty of felony, and on conviction thereof liable to penal servitude for a term not exceeding fourteen years or less than three years.

(2) Every person who unlawfully has in his possession any filing or clipping, or any gold or silver bullion, or any gold or silver in dust, solution or otherwise, which has been produced or obtained by impairing, diminishing or lightening any current gold or silver coin, knowing that it has been so produced or obtained, shall be guilty of felony and on conviction thereof liable to penal servitude for a term not exceeding seven years or less than three years.

Defacing  
and uttering  
defaced  
coins.

4.—(1) Every person who defaces any current coin by stamping thereon any names or words, whether the coin is or is not thereby diminished or lightened, shall be guilty of a misdemeanour, and on conviction thereof liable to imprisonment for a term not exceeding one year.

(2) A tender of payment in money made in any coin which has been defaced as aforesaid shall not be legal tender.

(3) Every person who tenders, utters or puts off any coin which has been defaced as aforesaid shall, on summary conviction, be liable to a fine not exceeding forty shillings :

Provided that no proceedings shall be instituted under this subsection, in England, without the consent of the Attorney-General, or, in Northern Ireland, without the consent of the Attorney-General for Northern Ireland.

(4) In England and Northern Ireland, a conviction for an offence under the last foregoing subsection shall not be removed by certiorari into the High Court and, as in Scotland, shall not be quashed for want of form.

5.—(1) Every person who tenders, utters or puts off any false or counterfeit coin resembling any current coin knowing it to be false or counterfeit, shall be guilty of a misdemeanour and on conviction thereof liable to imprisonment for a term not exceeding one year. Uttering  
and  
possession  
with intent  
to utter.

(2) Every person who tenders, utters or puts off any false or counterfeit coin resembling any current gold or silver coin, knowing it to be false or counterfeit, and—

(a) at the time of the tendering, uttering or putting off has in his possession, besides that coin, any other such false or counterfeit coin; or

(b) on the day of the tendering, uttering or putting off, or within the period of ten days next following, tenders, utters or puts off any other such false or counterfeit coin, knowing it to be false or counterfeit;

shall be guilty of a misdemeanour and on conviction thereof liable to imprisonment for a term not exceeding two years.

(3) Every person who has in his possession three or more false or counterfeit coins resembling any current gold or silver coin, knowing them to be false or counterfeit and with intent to utter or put off the said coins or any of them, shall be guilty of a misdemeanour and on conviction thereof liable to penal servitude for a term not exceeding five years or less than three years.

(4) Every person who has in his possession three or more false or counterfeit coins resembling any current copper coin, knowing them to be false or counterfeit, and with intent to utter or put off the said coins or any

of them, shall be guilty of a misdemeanour and on conviction thereof liable to imprisonment for a term not exceeding one year.

(5) Every person who commits—

(a) any misdemeanour under subsection (1) of this section in respect of a coin resembling a current gold or silver coin; or

(b) any misdemeanour under subsection (2) or subsection (3) of this section;

having been previously convicted of any such misdemeanour or of any misdemeanour under sections nine, ten or eleven of the Coinage Offences Act, 1861, or of any felony under this Act or that Act, shall be guilty of felony and on conviction thereof liable to penal servitude for life or for any term not less than three years.

24 & 25 Vict.  
c. 99.

(6) Every person who, with intent to defraud, tenders, utters or puts off as or for any current gold or silver coin—

(a) any coin not being that current coin and being of less value than that current coin; or

(b) any medal or piece of metal or mixed metals resembling in size, figure and colour that current coin and being of less value than that current coin;

shall be guilty of a misdemeanour and on conviction thereof liable to imprisonment for a term not exceeding one year.

(7) The offence of tendering, uttering or putting off a false or counterfeit coin shall be deemed to be complete although the coin is not in a fit state to be uttered or the counterfeiting thereof has not been finished or perfected.

Buying or  
selling, &c.  
counterfeit  
coin for  
lower value  
than its  
denomina-  
tion.

6.—(1) Every person who, without lawful authority or excuse (the proof whereof shall lie on the person accused), buys, sells, receives, pays or puts off, or offers to buy, sell, receive, pay or put off, any false or counterfeit coin resembling any current coin at or for a lower rate or value than the false or counterfeit coin imports, or apparently is intended to import, shall be guilty of felony, and on conviction thereof liable—

(a) in a case where the coin resembles a current gold or silver coin, to penal servitude for life or for any term not less than three years; and

(b) in a case where the coin resembles a current copper coin, to penal servitude for a term not exceeding seven years or less than three years.

(2) In any indictment for any felony under this section in respect of a coin resembling a current gold or silver coin, it shall be sufficient to allege that the person accused bought, sold, received, paid or put off the coin, or offered to buy, sell, receive, pay or put off the coin, at or for a lower rate of value than it imports or was apparently intended to import, without alleging at or for what rate, price or value it was bought, sold, received, paid or put off, or offered to be bought, sold, received, paid or put off.

(3) An offence under this section shall be deemed to be complete although the coin bought, sold, received, paid or put off, or offered to be bought, sold, received, paid or put off is not in a fit state to be uttered, or the counterfeiting thereof has not been finished or perfected.

7.—(1) Every person who, without lawful authority or excuse (the proof whereof shall lie on the person accused)—

Importing  
and ex-  
porting  
counterfeit  
coin.

(a) imports or receives into the United Kingdom from beyond the seas any false or counterfeit coin resembling any current gold or silver coin, knowing it to be false or counterfeit; or

(b) exports from the United Kingdom, or puts on board any ship, vessel or boat for the purpose of being so exported, any false or counterfeit coin resembling any current coin, knowing it to be false or counterfeit;

shall be guilty, in the case of importing or receiving, of felony and, in the case of exporting or putting on board, of a misdemeanour, and on conviction thereof liable to penal servitude for a term not exceeding fourteen years or less than three years.

(2) Nothing in this section shall affect the provisions relating to the importation of coin and imitation coin contained in section forty-two of the Customs Consolidation Act, 1876, and section two of the Revenue Act, 1889, as amended by any subsequent enactment.

39 & 40 Vict.  
c. 36.  
52 & 53 Vict.  
c. 42.

Making,  
possessing  
and selling  
medals  
resembling  
gold or  
silver coin.

8. Every person who, without lawful authority or excuse (the proof whereof shall lie on the person accused), makes, sells, offers for sale or has in his possession for sale, any medal, cast, coin, or other like thing made wholly or partially of metal or any mixture of metals, and either—

- (a) resembling in size, figure and colour any current gold or silver coin; or
- (b) having thereon a device resembling a device on any such current coin; or
- (c) being so formed that it can, by gilding, silvering, colouring, washing or other like process be so dealt with as to resemble any such current coin;

shall be guilty of a misdemeanour and on conviction thereof liable to imprisonment for a term not exceeding one year.

Making,  
mending  
and having  
possession  
of coining  
implements.

9.—(1) Every person who, without lawful authority or excuse (the proof whereof shall lie on the person accused), knowingly makes or mends, or begins or proceeds to make or mend, or buys or sells, or has in his possession, any puncheon, counter-puncheon, matrix, stamp, die, pattern or mould in or upon which there is made or impressed, or which will make or impress, or which is adapted and intended to make or impress, the figure, stamp or apparent resemblance of both or either of the sides of any current gold or silver coin, or any part of both or either of those sides, shall be guilty of felony and on conviction thereof liable to penal servitude for life or for any term not less than three years.

(2) Every person who, without lawful authority or excuse (the proof whereof shall lie on the person accused), makes or mends, or begins or proceeds to make or mend, or buys or sells, or has in his possession—

- (a) any edger, edging or other tool, collar, instrument or engine adapted and intended for the marking of coin round the edges with letters, grainings or other marks or figures apparently resembling those on the edges of any current gold or silver coin, knowing it to be so adapted and intended as aforesaid; or
- (b) any press for coinage, or any cutting engine for cutting by force of a screw or of any other contrivance round blanks out of gold, silver or other metal or mixture of metals, or any

other machine, knowing the press to be a press for coinage or knowing the engine or machine to have been used or to be intended to be used for the false making or counterfeiting of any current gold or silver coin;

shall be guilty of felony and on conviction thereof liable to penal servitude for life or for any term not less than three years.

(3) Every person who, without lawful authority or excuse (the proof whereof shall lie on the person accused), knowingly makes or mends, or begins or proceeds to make or mend, or buys or sells, or has in his possession, any instrument, tool or engine adapted and intended for the counterfeiting of any current copper coin, shall be guilty of felony and on conviction thereof liable to penal servitude for a term not exceeding seven years or less than three years.

**10.**—(1) Every person who, without lawful authority or excuse (the proof whereof shall lie on the person accused), knowingly conveys out of any of His Majesty's Mints—  
(a) any coining implement or any useful part thereof; or

Conveying  
coining im-  
plements,  
coin or  
bullion out  
of the Mint.

(b) any coin, bullion, metal or mixture of metals;  
shall be guilty of felony and on conviction thereof liable to penal servitude for life or for any term not less than three years.

(2) In this section the expression "any coining implement" means any puncheon, counter-puncheon, matrix, stamp, die, pattern, mould, edger, edging or other tool, collar, instrument, press or engine used or employed in or about the coining of coin.

**11.**—(1) Any person found committing an offence against this Act, other than an offence against section eight thereof, may be immediately apprehended without a warrant by any person and forthwith taken before a justice of the peace to be dealt with according to law.

Provisions  
as to arrest,  
discovery  
and seizure.

(2) If any person finds in any place whatsoever, or in the possession of any person without lawful authority or excuse—

(a) any false or counterfeit coin resembling any current coin (in this section referred to as a "counterfeit coin"); or

- (b) any instrument, tool or engine whatsoever adapted and intended for the counterfeiting of any such coin (in this section referred to as a "counterfeiting instrument"); or
- (c) any filings or clippings, or any gold or silver bullion, or any gold or silver in dust solution or otherwise, which have been produced or obtained by diminishing or lightening any current gold or silver coin (in this section referred to as "counterfeiting material");

he shall seize the counterfeit coin or counterfeiting instrument or material and carry it forthwith before a justice of the peace.

(3) Where it is made to appear by information on oath before any justice of the peace that there is reasonable cause to suspect that any person has been concerned in counterfeiting any current coin, or has in his possession any counterfeit coin or any counterfeiting instrument or any other machine used or intended to be used for making or counterfeiting any current coin (in this section referred to as a "counterfeiting machine") or any counterfeiting material, it shall be lawful for any justice of the peace, by warrant under his hand—

- (a) to cause any place whatsoever belonging to or in the occupation or under the control of that person to be searched, either in the day or in the night; and
- (b) to cause to be seized and carried forthwith before a justice of the peace any counterfeit coin or counterfeiting instrument, machine or material found in any place so searched.

(4) Where any counterfeit coin or counterfeiting instrument, machine or material is seized and carried before a justice of the peace, he shall, if necessary, cause it to be secured for the purpose of being produced in evidence in a prosecution for an offence against this Act.

(5) Any counterfeit coin or counterfeiting instrument, machine or material seized under this section shall, if it is not required to be produced in evidence or, if it is so required, after it has been so produced, be delivered up forthwith to the officers of His Majesty's Mint or the



Solicitor to the Treasury, or to any person authorised by them to receive it.

**12.**—(1) On conviction of a felony punishable under this Act the court, in addition to imposing a sentence of penal servitude or imprisonment, may require the offender to enter into his own recognizances, with or without sureties, for keeping the peace and being of good behaviour.

Power to fine and require sureties in addition to other punishment.

(2) On conviction of a misdemeanour punishable under this Act, the court instead of, or in addition to, any other punishment which may be lawfully imposed—

(a) may fine the offender; and

(b) may require him to enter into his own recognizances with or without sureties for keeping the peace and being of good behaviour.

(3) No person shall be imprisoned for more than one year for not finding sureties under this section:

Provided that the provisions of this subsection shall not apply in the case of a conviction of a misdemeanour punishable under section eight of this Act.

(4) In the application of this section to Scotland, references to entering into recognizances or to finding sureties shall be construed as references to finding caution, and subsection (2) in so far as it empowers a court to impose a fine or to require an offender to find caution, in addition to imprisonment, shall not apply as regards a conviction under section eight of this Act.

**13.** Where a person is charged with an offence against this Act, the fact that a coin produced in evidence against him is false or counterfeit may be proved by the evidence of any credible witness, and it shall not be necessary to prove that fact by the evidence of an officer of His Majesty's Mint.

Evidence of coin being counterfeit.

**14.**—(1) If any person suspects any coin tendered to him as current gold or silver coin to have been diminished otherwise than by reasonable wearing, or to be counterfeit, it shall be lawful for him to break the coin.

Breaking of coin suspected to be counterfeit.

(2) If any coin when so broken appears to have been diminished otherwise than as aforesaid, or to be counterfeit, the person tendering it shall bear the loss thereof, but if it is of due weight and appears to be lawful coin, the person breaking it shall receive it at the rate it was coined for.

(3) If any dispute arises whether any coin so broken has been diminished otherwise than as aforesaid, or is counterfeit, it shall be heard and finally determined in a summary manner by a justice of the peace.

(4) In this section references to breaking shall include references to cutting, bending and defacing.

Provisions  
as to  
Scotland.

**15.—**(1) The following provisions of this section shall have effect in Scotland.

(2) All proceedings by this Act made competent before, and all powers conferred by this Act upon, any justice or justices shall be competent before and may be exercised by any sheriff, magistrate or justice of the peace.

(3) Where two or more persons, acting in concert in different counties or jurisdictions, commit any offence against this Act (other than an offence against section eight thereof), they may be dealt with, indicted, tried and punished, and the offence may be laid and charged to have been committed, in any one of those counties or jurisdictions, in the same manner in all respects as if the offence had been actually and wholly committed within that county or jurisdiction.

(4) Where any offence against this Act (other than an offence against section eight thereof) is committed at sea and the vessel in which it has been committed is registered in Scotland, or touches at any part thereof, the Courts of Criminal Law of Scotland may inquire into, try and determine the offence in the same manner as if it had been committed in Scotland :

Provided that nothing in this subsection shall alter or affect any of the laws relating to the government of His Majesty's land or naval forces.

Provisions  
as to  
Northern  
Ireland.

**16.—**(1) The following provisions of this section shall have effect in Northern Ireland.

(2) No warrant of commitment for an offence against this Act (other than an offence against section

eight thereof) shall be held void by reason of any defect therein, if it is alleged therein that the person to whom it relates has been convicted and there is a valid conviction to sustain it.

(3) In any case where—

- (a) a person tenders, utters or puts off any false or counterfeit coin in one county or jurisdiction and also tenders, utters or puts off any other false or counterfeit coin in any other county or jurisdiction, either on the day of the first-mentioned tendering, uttering or putting off or within the period of ten days next following; or
- (b) two or more persons, acting in concert in different counties or jurisdictions, commit any offence against this Act (other than an offence against section eight thereof);

every such offender may be dealt with, indicted, tried and punished, and the offence may be laid and charged to have been committed, in any one of the said counties or jurisdictions in the same manner in all respects as if it had been actually and wholly committed within that county or jurisdiction.

(4) All indictable offences against this Act (other than an offence against section eight thereof) committed within the jurisdiction of the Admiralty shall be deemed to be offences of the same nature and liable to the same punishments as if they had been committed upon the land, and may be dealt with, inquired into, tried and determined in any county or place in which the offender is apprehended or in custody in the same manner in all respects as if it had been actually committed in that county or place :

Provided that nothing in this subsection shall alter or affect any of the laws relating to the government of His Majesty's land or naval forces.

(5) In any indictment for any offence mentioned in the last foregoing subsection or for being accessory to any such offence, the venue in the margin shall be the same as if the offence had been committed in the county or place in which the indictment is presented, and the offence itself shall be averred to have been committed "on the high seas."

Inter-  
pretation.

**17.** For the purposes of this Act—

- (a) the expression “copper coin” includes any coin of any metal or mixed metal not being a gold or silver coin;
- (b) a coin shall be deemed to be current if it has been coined in any of His Majesty’s Mints, or is lawfully current, by virtue of any Proclamation or otherwise, in any part of His Majesty’s dominions, whether within the United Kingdom or otherwise, or is lawfully current in any foreign country;
- (c) a coin apparently intended to resemble or pass for any current coin shall be deemed to resemble that current coin;
- (d) a current coin which has been gilt, silvered, washed, coloured or cased over or in any manner altered so as to resemble any current coin of a higher denomination shall be deemed to be a false or counterfeit coin resembling a current gold or silver coin;
- (e) a thing shall be deemed to be in the possession of any person, if he himself has it in his personal custody or possession, and also if he knowingly and wilfully has it in the actual custody or possession of some other person, or in some building or place (whether belonging to or occupied by himself or not), and whether he has it for his own use or benefit or for that of any other person.

Short title,  
repeal and  
commence-  
ment.

**18.**—(1) This Act may be cited as the Coinage Offences Act, 1936.

(2) The enactments set out in the Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

(3) This Act shall come into operation on the first day of August, nineteen hundred and thirty-six.

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**SCHEDULE.**

Section 18.

**ENACTMENTS REPEALED.**

| Session and Chapter.      | Title or Short Title.                            | Extent of Repeal.                                                                                                |
|---------------------------|--------------------------------------------------|------------------------------------------------------------------------------------------------------------------|
| 24 & 25 Vict.<br>c. 99.   | The Coinage Offences Act, 1861                   | The whole Act.                                                                                                   |
| 46 & 47 Vict.<br>c. 45.   | The Counterfeit Medal Act, 1883                  | The whole Act.                                                                                                   |
| 25 & 26 Geo. 5.<br>c. 25. | The Counterfeit Currency (Convention) Act, 1935. | Subsections (1), (2) and (3) of section three, subsection (3) of section six and Parts I and II of the Schedule. |

**CHAPTER 17.**

An Act to empower voluntary hospitals in pursuance of Orders of the Charity Commissioners to provide accommodation and treatment for paying patients. [21st May 1936.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. In this Act unless the context otherwise Definitions.  
requires—

“voluntary hospital” means an institution (not being an institution which is carried on for profit or which is maintained wholly or mainly at the expense of the rates) which provides medical or surgical treatment for in-patients;

“committee of management” includes any body or persons having the management or control of a voluntary hospital;

“Order” means an Order made by the Charity Commissioners for any of the purposes specified in subsection (1) of section two of this Act.